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Enhanced Music Limited
161 Rosebery Avenue,
London, EC1R 4QX,
United Kingdom

Registered in the UK: 6581977
VAT No: 945 4891 80

(The 'Company')

Ref : LETTER OF ENGAGEMENT

Date :	Friday 24th January 2025
Artist Name :	Darren Tate
Artist Name and Address :	Darren Tate of 97 Bush Hill Road, London N21 2DG, UK
Phone:	+44 7970716015
Email:	darren@mondorecords.com

Dear Darren (the 'Artist')

Record Contract

Schedule : **"Darren Tate – Track A / Track B / Track C / Track D / Track E / Track F"** (The 'EP') (All Mixes) (The Master Recordings)

We refer to our recent discussions regarding the provision of the Master Recording named in the Schedule, and write to confirm the terms of our agreement with you as follows:

1. We have agreed to engage you and you accept our engagement of you to supply us with your recording services in respect of your performance of the Master Recording upon and subject to the Standard Terms and Conditions for the Supply of Recording Services a copy of which is annexed hereto ("the Terms and Conditions") which are incorporated herein and together with this letter constitute all of the terms of our agreement.

2. The Company agrees to pay the Artist an Advance of £2,000.00 GBP for the production and delivery of the six (6) Master Recordings outlined in this Agreement, along with an additional Advance of £500.00 GBP to be distributed by the Artist to the featured artists on the release. The total Advance of £2,500.00 GBP is fully recoupable and shall be payable upon receipt of a valid invoice.

Please confirm your acceptance of the above terms by initialing every page, and signing and dating all copies of this letter, returning one to the above address and retaining all others.

Yours sincerely,

Benedict Philipp
For and on behalf of Enhanced Music Limited

Accepted and agreed by the Artist

Print Name Darren Tate Signed DocuSigned by: 3E29C6DBF70A477... Date 24/1/2025

Initial

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STANDARD TERMS AND CONDITIONS FOR THE SUPPLY OF RECORDING SERVICES

1. Interception

1.1. In these Terms and Conditions the following words and meanings have the meanings set opposite them.

“Act”	the Copyright, Designs and Patents Act 1988 and shall include any amendments or re-enactments thereof;
"Advance"	the fully recoupable sum payable to the Artist in accordance with any amount treated as an Advance payment.
“Agreement”	the agreement made between the Company and the Artist comprising the Engagement Letter and these Conditions;
“Artist”	the artist named in the Engagement Letter;
“Company”	Enhanced Music Limited whose principle place of trading is Enhanced Music, 161 Rosebery Avenue, London, EC1R 4QX, United Kingdom
“Compilation Record”	a record containing any Master Recording coupled with a recording not the subject of the Agreement;
“Conditions”	these standard terms and conditions for the supply of recording services;
“Controlled Composition”	a musical composition or lyric written in whole or in part by the Artist and embodied on a Master Recording;
“Direct Costs”	the meaning set out in Clause 5.2;
“Engagement Letter”	a letter of engagement from the Company to the Artist (countersigned in agreement by the Artist) setting out the terms of the engagement by the Company of the Artist for the provision by the Artist of Recordings of the Artist's performance of musical compositions and which incorporates these Conditions;
“Lending”	the making available of the Master Recordings for a limited period of time (but not for the purpose of making a profit) through institutions accessible to the public (including, without limitation, public libraries, school libraries and collections of subject matter of whatsoever nature);
“Master Recording”	the meaning set out in Clause 2.2;
“Original Composition”	an original musical composition or lyric written in whole or in part by the Artist and embodied on a Master Recording;
“Professional Name”	the name by which the Artist is addressed in the Engagement Letter;
“Published Price to Dealer”	for the purposes of Clause 5.1 the published price to dealer (PPD) of the relevant record company (or associated company or licensee) in the country of sale in respect of Records sold in any territory; or if none: Either: (a) the price used in such territory as the basis upon which mechanical royalties (on a dealer basis) are paid or the usual industry price; or if none: (b) the price charged to the distributor, wholesaler, trading group or multiple store or chain (as the case may be);
“Record”	phonograph records, tapes, compact discs, audio-visual discs and cassettes, new digital media and any other device now known or invented hereafter by which sound or sound coupled with visual images may be reproduced;
“Recording”	a recording by the Artist of its performances of the Composition pursuant to the Agreement;

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“Recording Costs”	all recording costs actually paid or incurred by the Company in respect of the Master Recordings including, but not limited to studio costs, musicians' and performers' costs and royalties, hire costs, engineering fees, producers' costs and royalties, accommodation, food and transport;
“Rental”	the making available of the Master Recordings for a limited period of time and for profit making purposes;
“Royalty Payments”	the Artist's share of Royalties;
“Single”	a Record comprising one or more tracks and with a total playing time of not less than four minutes;
“Term”	15 years;
“Territory”	the World.

2. Recordings

2.1. Unless otherwise agreed the Artist shall be responsible for bearing all Recording Costs. The Artist shall not incur any Recording Costs without the Company's prior written approval. To the extent that the Company incurs any Recording Costs, they shall be treated as Advances for the purposes of Clause 7 and shall be recoupable in full from the Royalty Payments payable to the Artist under Clause 6.

2.2. Each master of a Recording (a “Master Recording") made by the Artist shall be a fully mixed and edited WAV, AIFF or a compact disc and the recording shall be, in the Company's reasonable opinion, of a technical standard suitable for the production of Records for sale to the public and artistically and commercially satisfactory to the Company.

2.3. In order for the Company to fulfill the Release Commitment, the Company requires the following release assets to be provided by the Artist in advance;

2.3.1. an original version of the Master Recording
2.3.2. an extended version of the Master Recording
2.3.3. an instrumental version of the Master Recording, should this be applicable
2.3.4. 8-10 grouped stems, which are all the same length and when compiled together will consist of the Master Recording, which are to be approved by the Company.

3. The Company's Rights

3.1. The Artist agrees that the entire copyright and all other rights in the Master Recordings made by the Artist and all Records manufactured from them shall vest in the Company absolutely throughout the Territory for the full period of copyright and all renewals and extensions and to operate as a present assignment of future copyright together with all accrued causes of action in respect thereof;

3.2. The Artist grants to the Company and to its assignees or licensees the right to use the Artist's approved name, professional name, likeness, photographs and biographical material in connection with the Company's advertising, publishing and/or otherwise exploiting the Master Recordings or Records.

3.3. The Artist irrevocably grants to the Company all consents required to authorise the Company's exploitation of the Master Recordings and Records throughout the Territory.

3.4. The Artist hereby acknowledges and consents to a designated release window ("Release Window") spanning a duration of four (4) weeks prior to and four (4) weeks following the official release date of the Master Recording(s) as specified in the schedule. Throughout the entire Release Window, the Artist shall refrain from releasing any original, collaborative, or remixed recordings, whether through independent means or in association with any other entity or record label, without obtaining explicit approval from the Company beforehand.

3.5. The Artist grants the Company the irrevocable and exclusive right to make music videos of its performances in connection with the exploitation of Master Recordings.

3.6. The Company is hereby granted the exclusive right throughout the Territory to use and exploit and authorise others to use and exploit the artwork used on record sleeves and packaging by any means in all media in connection with the endorsement promotion advertising and publicity of Records and the Artist generally. All rights in the nature of copyright or other intellectual property in artwork generated by or for the Company shall be the sole property of the Company.

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4. The Company's Release Commitment

4.1. Subject to the full and timely performance and observance of the Artist's obligations warranties and representations hereunder the Company shall release or procure the release of the Master Recording in the Territory.

5. Advance

5.1. The Company agrees to pay the Artist an Advance of £2,000.00 GBP for the production and delivery of the six (6) Master Recordings outlined in this Agreement, along with an additional Advance of £500.00 GBP to be distributed by the Artist to the featured artists on the release. The total Advance of £2,500.00 GBP is fully recoupable and shall be payable upon receipt of a valid invoice.

6. Royalties

6.1. In consideration of the services to be provided by the Artist and of the rights granted by it to the Company under the Agreement, the Company agrees to pay the Artist a sum equal to

6.1.1. 35% PPD for digital Single and Album sales;
6.1.2. 25% PPD for in house Compilation licenses;
6.1.3. 50% of Net Receipts from 3rd Party licenses;

6.2. The Company may deduct 50% of the following Direct Costs from the Royalty Payments. Direct Costs shall mean all costs and expenses actually paid or incurred by the Company in respect of the Master Recording(s) including without limitation:

(a) all costs of artwork including but not limited to sleeve and label printing and packaging;

(b) all costs in respect of the marketing and promotion of Records hereunder;

(c) all legal costs in respect of the exploitation of Records hereunder;

(d) any costs whatsoever in respect of the making, manufacture, distribution, marketing and selling of any promotional or commercial video in connection with any of the Master Recordings;

(e) any other costs incurred by the Company which are directly attributable to the distribution, merchandising, promotion, marketing and selling of the Master Recordings and any Records derived there from;

(f) any and all sales and similar taxes which may be imposed by any taxing jurisdiction as a result of the production of the Master Recordings hereunder or in connection with the distribution and sale of Records;

(g) all mechanical royalties payable by the Company in respect of the Records;

(h) all payments made to third parties in respect of the use of any so-called "samples".

6.3. The Company shall be entitled to recoup from Royalty Payments all loans and Advances paid by it to the Artist.

6.4. The Artist’s share of Royalty Payments are set out in Appendix 1.

7. Accounting

7.1. The Company will account to the Artist for royalties within 90 days of each Half Year Day in each year in respect of sums received by it during the previous six month period from the exploitation of Master Recordings made pursuant to the Agreement, manufactured and distributed by the Company. The Company shall supply the Artist with statements showing in reasonable detail all sums received by the Company and the calculation of royalties due to the Artist in Royalty Payments. For the purposes of this clause "Half Year Day" shall mean 30 June or 31 December.

7.2. The Artist shall have the right at its own expense to appoint a chartered accountant to inspect the Company's books and records insofar as they relate to the Agreement but not more than once in any calendar year upon reasonable notice during normal office hours. Any statements sent to the Artist shall be binding upon it and not subject to objection unless it gives the Company notice in writing specifying its objection within one year after the date of such statement is rendered.

8. Publishing

8.1. Publishing splits to the Artists and individual writers information set out in Appendix 2.

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9. Direct License

9.1. Where the Company has entered into a so called ‘Direct License’ agreement with digital/satellite service SiriusXM, Company shall have the right to collect 100% of the revenue from the exploitation of the Master, comprising both the so-called Label, and Featured/Non-Featured Artist shares. The Company shall then pay onto the Artist 100% of the so called Featured Artist share without recoupment or deductions, at the standard Accounting periods set out herein, or direct to any Agent or Collection Society that Artist instructs to collect on Artist's behalf. The Company shall pay on the so called Non-Featured Artist share to the relevant society. Where more than one Artist is Featured on the Master, the Company shall pay equal percentages of the Featured Artist share of royalties to those Artists featured.

10. Warranties

10.1. The Artist hereby represents warrants and undertakes to the Company that:

(a) the Artist is solely and exclusively entitled to grant and assign the rights granted and assigned to the Company hereunder and has full power and authority to enter into the Agreement;

(b) by its signature the Artist grants to the Company all necessary consents under the Act and any statutory re-enactment of the same to enable the Company to make the fullest use of the product of the Artist's services under the Agreement;

(c) the Artist is not a minor;

(d) none of the Controlled Compositions embodied in the Master Recordings shall infringe the rights of any third party, be defamatory or be obscene;

(e) the Master Recordings contain no so-called "samples" from any other recording or performance;

(f) the Artist will not without the Company's prior written consent divulge to any other third party other than the Artist's own professional advisers or as otherwise may be required by law any information concerning the Company's business including but not limited to the terms of the Agreement;

(g) the Artist will do nothing to detract from the Company's rights under the Agreement;

(h) the Artist agrees to indemnify the Company in full respect of all loss, damage, costs and expenses incurred by the Company as a result of a material breach by the Artist or any of the warranties agreements undertakings or representations made by the Artist in the Agreement.

(i) Once the contract has been signed by the Artist, the Artist declares that no copies, physical or digital or other of the agreed signed master recorded works named in the engagement letter have been distributed in whole or in part to any other person, persons or companies other than the named artist on the engagement letter and this company.

(j) the Company grants the Artist the right to upload approved samples of the Master Recordings to the Artist’s social media channels and websites. The Artist will get written approval prior to any upload.

11. Mechanical Royalties

11.1. The Artist represents and warrants that the Company shall be able to obtain mechanical licenses from the copyright proprietors of any Controlled Compositions. The Artist warrants that such licenses will be available to the Company on the usual or statutory terms prevailing in each country of the world and that in the USA and Canada mechanical royalties shall be payable at 100% of the minimum statutory rate per composition at the date of first release of Records comprising that composition. Mechanical royalties in the USA and Canada shall not be payable on more than two tracks in respect of any Single or ten tracks on any Album. The Company will pass onto the Artist the benefit of any better terms than the above that it is able to obtain from its licensees.

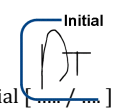
12. Licenses

12.1. The Company agrees that all agreements entered into by it with its licensees in respect of the Artist's Recordings under the Agreement shall be on a bona fide arm's length commercial terms.

13. Miscellaneous

13.1. All payments due to the Artist hereunder are exclusive of VAT and the Company agrees to pay VAT in addition on receipt of a valid invoice.

13.2. The Artist acknowledges that it has been advised to seek independent expert legal advice prior to signing the agreement and confirms that it has done so.



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13.3. The Agreement shall be governed by and construed in accordance with English Law.

13.4. (a) All communications between the Company and the Artist in respect of any of the provisions of the Agreement shall be delivered in person or sent to the addresses set out in the Agreement (or to such other addresses as may be notified in writing) by prepaid first class post or by facsimile transmission or other electronic means of written communication with immediate confirmation by letter.

(b) Communications which are sent or dispatched as set out below shall be deemed to have been received by the addressee at the times stated:

i. by hand - the date of dispatch;

ii. by post - three days after dispatch;

iii. by facsimile transmission or other electronic means of written communication - the following the day on which the communication has been sent.

(c) In proving service by post it shall only be necessary to prove that the communication was contained in an envelope, which was duly addressed stamped and posted by registered or recorded delivery post. In proving service by facsimile transmission or other electronic means of written communication proof of service will be accepted on receipt of a correct answer back message.

13.5. The Artist agrees at the Company's request and at no expense to the Artist to execute such documentation and give further assurance as the Company may reasonably require to confirm the grant transfer and assignment of rights to the Company hereunder.

13.6. The Company shall have the right to assign its rights under the Agreement.

13.7. Without prejudice to any of the Company's other rights and remedies under the Agreement or otherwise the Company shall be entitled to terminate the Agreement forthwith by notice in writing to the Artist if the Artist shall be in material breach of any of its obligations under the Agreement and fails to remedy such breach (if capable of remedy save as to the time for performance) within 30 days after the Company's request to do so.

13.8. The Agreement contains all the terms agreed between the Company and the Artist and may not be modified altered or changed except by an instrument in writing signed by or on behalf of each party respectively.

13.9. The Company shall not be liable to the Artist under any circumstances in respect of any claim for loss of opportunity on the part of the Artist to enhance the Artist's reputation.

13.10. If any Clause or Part of the Agreement shall for any reason be adjudged by any court or other legal authority of competent jurisdiction to be invalid, such judgement shall not affect the remainder of the Agreement which shall continue in full force and effect.

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APPENDIX 1.

TBC – depending on individual titles

APPENDIX 2.

TBC – depending on individual titles